PIL had been filed – it appeared that the Supreme Court was losing its patience in the face of allegations and counter-allegations. The state government informed the court that over 3,000 SPOs had been appointed by the Chhattisgarh government in addition to the members of the regular police force (it did not clarify how many of these were also members of Salwa Judum).[16] Later, the court asked the state government to submit a report to the court to demonstrate compliance with the recommendations of the NHRC committee.[17]

As the hearings continued, the court focused its attention on the rehabilitation of Adivasis who had been displaced by Salwa Judum's clearing operations of villages. In January 2011, it noted that twenty-three relief camps were still functioning in the Dantewada and Bijapur districts. The court therefore reminded the state government of its 'constitutional duty and obligation' to facilitate the return of the Adivasis to their villages.[18] All victims of conflict – whether caused by Naxalites or the government of Chhattisgarh – were to be compensated. Schools and hostels that were occupied by security forces were ordered to be vacated.[19]

From the time the case was filed in 2007 until mid-2011, no less than nine different judges – sitting in panels with one or two of their colleagues – heard the case. One of them – Justice B. Sudarshan Reddy – received an anonymous letter suggesting that as a member of the People's Union for Civil Liberties (which had filed an application to be added as a party to this case), it would be a conflict of interest for him to hear the case. The lawyers on all sides confirmed that they had no objection to his continuing to hear the case.

At least twenty-six hearings were scheduled during that period. While the case was simply adjourned on many occasions when it was called for hearing, the court continued to express its dismay at the state of affairs in Chhattisgarh. In one hearing, the judges are reported to have observed that 'the state should not encourage the common man by arming them to fight Naxalites'.[20] In another hearing, it was remarked that if private citizens were permitted to kill fellow citizens, the state ought to be 'liable to be prosecuted as an abettor of murder'.[21] However, the court had exercised